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Case Number: 26PSCV01424 Hearing Date: August 31, 2026 Dept: 6

CASE

NAME: Visavanh

Sokanthong v. Dakota Sourcing, LLC

Specially

Appearing Defendant Dakota Sourcing, LLC's Amended Motion to Quash Service of Summons on First Amended Complaint for Lack of Personal Jurisdiction, or Alternatively to Quash Service of Summons for Defective Service of Process

TENTATIVE

RULING

The Court DENIES Specially Appearing Defendant Dakota Sourcing, LLC's Amended Motion to Quash Service of Summons on First Amended Complaint for Lack of Personal Jurisdiction, or Alternatively to Quash Service of Summons for Defective Service of Process.

Defendant Dakota Sourcing, LLC must file a responsive pleading within 10 calendar days.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an employment dispute. On April 20, 2026, plaintiff Visavanh Sokanthong (Plaintiff) filed this action against defendant Dakota Sourcing, LLC (Defendant) and Does 1 through 25, alleging causes of action for failure to

accommodate in violation of the California Fair Employment and Housing Act, failure to engage in the interactive process in violation of the California Fair Employment and Housing Act, discrimination in violation of the California Fair Employment and Housing Act, retaliation in violation of the California Fair Employment and Housing Act, wrongful termination in violation of public policy, and failure to reimburse business expenses. On May 12, 2026, Plaintiff filed the operative First Amended Complaint (FAC) against the same Defendant and Does 1 through 25, alleging the same causes of action.

On June 12, 2026, via special appearance, Defendant moved to quash service of the FAC for lack of personal jurisdiction, or alternatively for defective service of process. On July 10, 2026, Defendant filed an amended motion to quash. On July 30, 2026, Defendant filed a second motion to quash.[1] On August 20, 2026, Plaintiff filed an Opposition. On August 24, 2026, Defendant replied to Plaintiff's Opposition.

LEGAL STANDARD

A
defendant may move to quash service on the ground that the court lacks jurisdiction by filing a noticed motion to quash the service of summons at any time before the expiration of its time to plead. (Code Civ. Proc., § 418.10, subd. (a)(1).) When a defendant argues that service of summons did not bring him or her within the trial court's jurisdiction, the plaintiff has the burden of proving the facts that did give the court jurisdiction, that is, the facts requisite to an effective service. (Code Civ. Proc., § 418.10; Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 449 (Vons Companies) [upon a defendant's motion to quash, "the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction"].) Once the plaintiff establishes facts showing minimum contacts with the forum state, "it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (Ibid.)

PRELIMINARY ISSUES

Plaintiff
acknowledges the Opposition having been filed two days late. (Code Civ. Proc., § 1005, subd. (b); see generally, Gould Decl.) The Court exercises its

discretion to still consider Plaintiff's Opposition. (See Cal. Rules of Court, rule 3.1300, subd. (d); *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202.)

OBJECTIONS

The Court

OVERRULES Defendant's evidentiary objections. First, Exhibit A attached to the Opposition contains a file stamp indicating it is a court record of which the Court can take judicial notice on its own. (*Starr v. Ashbrook* (2023) 87 Cal.App.5th 999, 1014 [a court can take judicial notice of its own records].) Second, the Court does not rely on Exhibit A attached to Michael Gould's supplemental declaration in reaching its decision herein.

DISCUSSION

Summary
of Arguments

Appearing

specially, Defendant Dakota Sourcing contends the Court lacks personal jurisdiction over it as a South Dakota LLC that is organized, headquartered, and conducts its manufacturing and majority of business in South Dakota, and is therefore not "at home" in California, while Plaintiff who bears the burden by a preponderance of the evidence and cannot rely on an unverified complaint has offered no competent evidence of the minimum contacts needed for either general or specific jurisdiction. Defendant argues that specific jurisdiction must be assessed cause of action by cause of action under the *Calder* effects test, and that as to each of the six FEHA, wrongful-termination, and Labor Code section 2802 claims there was no intentional act expressly aimed at California—asserting, among other things, that Plaintiff resigned rather than being terminated, that no protected accommodation was requested or available, and that any employee travel was unilateral and undirected. Alternatively, Defendant argues service was defective: the substituted-service attempt left documents at its Azusa office but mailed them to South Dakota rather than to the place where a copy of the summons and FAC were left, as required by Code of Civil Procedure section 415.20, subdivision (a), and included no proof of service of mailing from which a response deadline could be computed. Defendant further argues the out-of-state certified mailing was invalid because it was addressed to the entity "Dakota Sourcing LLC" with no authorized individual named and was signed

for by an accountant, Marissa Heydon, who is not an agent, officer, or person authorized to accept service, thereby failing sections 415.40 and 416.10 under Dill v. Berquist. Finally, Defendant maintains that actual notice of the action cannot cure a complete failure to comply with the service statutes.

In

opposition, Plaintiff argues the Motion is moot because Dakota Sourcing already appeared and sought affirmative relief when its counsel filed a CIV-141 automatic-extension declaration on May 12, 2026, thereby invoking the Court's authority and waiving any service defect. Plaintiff contends the Motion improperly seeks a merits determination when a motion to quash is limited to jurisdictional facts and cannot resolve such disputed issues. Plaintiff argues California has specific jurisdiction because Plaintiff worked for Defendant in California, the company maintained a California office, and the alleged unlawful employment practices all occurred in California, so the controversy arises directly from Defendant's California employment activities. As to service, Plaintiff argues that actual notice supports substantial compliance and that Defendant, which admits it received the summons and first amended complaint, retained counsel, and filed an extensive motion, suffered no prejudice from any technical defect.

In

reply, Defendant contends that an extension request is not a general appearance because Code of Civil Procedure section 418.10, subdivision (d), expressly provides that an application or stipulation for an extension of time to plead is not a general appearance and section 418.10, subdivision (e)(3), defines the sole waiver event, which did not occur here. Defendant argues the Opposition contains no declaration or admissible evidence, presenting a pure question of law, and that Plaintiff conceded both his burden of proof and the absence of general jurisdiction. On specific jurisdiction, Defendant argues Vons is an indemnity/contract case that no longer supplies the standard, that intentional-wrong and FEHA claims are governed by the Calder effects/purposeful-direction test under Pavlovich, and that relatedness must be shown claim by claim under Bristol-Myers Squibb, which the Opposition never addresses. Defendant contends attorney argument and an unverified complaint are not evidence, so Plaintiff failed to carry his jurisdictional burden. On service, Defendant argues the Plaintiff bears the burden of proving substantial compliance, that actual notice does not cure defective service, and that Pasadena Medi-Center predates the 1982 amendments and the now-abrogated

liberal-construction rule.

Analysis

The Court finds Plaintiff's argument that the declaration submitted in support of the automatic extension for a demurrer constituted a general appearance fails because Code of Civil Procedure section 418.10, subdivision (d), expressly states that "no... application to the court or stipulation of the parties for an extension of the time to plead, shall be deemed a general appearance by the defendant." (Code Civ. Proc., § 418.10, subd. (d).) Nevertheless, for the reasons set forth below, the Court finds Defendant's Amended Motion fails.

First, Defendant's arguments regarding the merits of Plaintiff's underlying claims are irrelevant and do not address whether Plaintiff properly served the summons and FAC or whether the Court has personal jurisdiction over Defendant. (See Code Civ. Proc., § 418.10; *Vons Companies*, supra, 14 Cal.4th at p. 449.)

Second, the Court notes its records contain a proof of service filed on June 15, 2026, which indicates substitute service of the summons and FAC on May 19, 2026. (Proof of Service (6/15/26); *Starr v. Ashbrook*, supra, 87 Cal.App.5th at p. 1014 [a court can take judicial notice of its own records].) The proof of service indicates the summons and FAC were left at Defendant's office in Azusa with Bella Hu, an executive assistant described as a person at least 18 years of age apparently in charge at the office or usual place of business, that the process server informed Bella Hu of the general nature of the papers, and that the process server thereafter mailed copies of the papers on May 19, 2026, to the person to be served at the place where the copies were left. (Proof of Service (6/15/26), ¶ 5, subds. (b)(1), (b)(4); Code Civ. Proc., § 415.20, subd. (a).) The proof of service identifies Lynn Ellington as Defendant's agent for service. (Proof of Service (6/15/26), subd. (b).) The proof of service further indicates it was served by a registered process server. (Proof of Service (6/15/26), ¶ 7, subd. (e)(3).) Finally, the process server executed the proof of service under penalty of perjury. (Proof of Service (6/15/26), ¶ 8.) If a registered process server performs the service and the proof of service complies with all the statutory requirements, the proof of service is entitled to a rebuttable presumption of validity. (Evid. Code, § 647; *Dill v. Berquist* (1994) 24 Cal.App.4th 1426, 1441-1442 [“that presumption arises only if the proof of service complies with statutory

requirements regarding such proofs"].) Accordingly, the June 15, 2026 proof of service is entitled to a rebuttable presumption of validity.

None of Defendant's arguments or evidence rebut this presumption of validity, as Defendant's arguments appear to be directed at a different proof of service or sometimes even appear to be directed at the original Complaint. Specifically, Defendant's Amended Motion says the FAC was served at some point after March 12, 2026, but this action was not initiated until April 20, 2026, and the FAC was not filed until May 12, 2026. (See Motion, ¶ 3; Zhang Decl., ¶ 4.) It is unclear what Defendant means regarding the likelihood of the process server bringing two sets of every document being close to zero. (Motion, ¶ 5.) It is unclear which proof of service Defendant means when arguing about a personal proof of service signed 26 days after the mailing since proof of personal service does not require such a mailing. (Motion, ¶ 4; Code Civ. Proc., § 415.10.) If Defendant is referring to the June 15, 2026 proof of service by substituted service, the Court finds the process server's signing of the proof of service 26 days later insufficient to rebut its presumption of validity, especially when compared to all the evidence noted above. (See Proof of Service (6/15/26); Vons Companies, Inc. v. Seabest Foods, Inc., supra, 14 Cal.4th at p. 449 ["When there is conflicting evidence, the trial court's factual determinations are not disturbed on appeal if supported by substantial evidence. [Citation]"].)

To the extent Defendant relies on Plaintiff's separate mailing of the summons and FAC to Defendant's South Dakota office to rebut the presumption of validity for the June 15, 2026 proof of service, the Court finds this ultimately has no bearing since that proof of service expressly states the summons and FAC were mailed to the same Azusa office where the other copies of those documents were left, thus satisfying the requirements of Code of Civil Procedure section 415.20, subdivision (a). (Proof of Service (6/15/26), ¶ 5, subds. (b)(1), (b)(4); Code Civ. Proc., § 415.20, subd. (a).)

As to personal jurisdiction, the Court finds Defendant's own Motion supplies the evidence necessary to show that the Court has specific jurisdiction over Defendant. "A nonresident defendant may be subject to the court's specific jurisdiction if three requirements are met: (1) the defendant has purposefully availed itself of forum benefits with respect to the matter in controversy; (2) the controversy is related to or arises out of the defendant's contacts with the forum; and (3) the exercise of

jurisdiction would be reasonable and comports with fair play and substantial justice. [Citations.]” (ViaView, Inc. v. Retzlaff (2016) 1 Cal.App.5th 198, 216 (ViaView).) A defendant purposefully avails itself of a forum state when it intentionally goes beyond its home state’s borders by, among other thing things, exploiting a market or establishing operations there. (See Preciado v. Freightliner Customer Chassis Corp. (2023) 87 Cal.App.5th 964, 977-978 (Preciado).) “The contacts must be the defendant’s own choice and not ‘random, isolated, or fortuitous.’” (Id. at p. 977, internal citation omitted.)

Here, Defendant’s Amended Motion states that Defendant’s “main California Office” is “in Azusa, California.” (Amended Motion, ¶ 3.) Defendant’s supporting declaration from Bill Zhang states that Defendant has an office in Azusa, California. (Zhang Decl., ¶ 4.) An attached exhibit shows that Defendant’s office is staffed by an executive assistant to the CEO at Defendant’s Azusa office. (Zhang Decl., Ex. B.) The Court finds these facts constitute strong evidence that Defendant purposefully availed itself of California.

Moreover, the evidence also shows that the underlying controversy is related to Defendant’s contacts with California. (See ViaView, supra, 1 Cal.App.5th at p. 216.) Plaintiff’s claims arise directly out of Plaintiff’s employment relationship with Defendant at its Azusa office. (See Zhang Decl., ¶¶ 4, 13-26, Exs. B-C.) Plaintiff has therefore met his burden and Defendant must show that the exercise of jurisdiction would be unreasonable. (See ViaView, supra, 1 Cal.App.5th at pp. 216-217.) Defendant provided no evidence or arguments showing that the exercise of jurisdiction would be unreasonable. (See generally, Amended Motion; Reply.)

Based on the foregoing, the Court DENIES the Motion.

CONCLUSION

The Court DENIES Specially Appearing Defendant Dakota Sourcing, LLC’s Amended Motion to Quash Service of Summons on First Amended Complaint for Lack of Personal Jurisdiction, or Alternatively to Quash Service of Summons for Defective Service of Process.

Defendant Dakota Sourcing, LLC must file a responsive pleading within 10 calendar days.

Plaintiff is ordered to give notice
of the Court's ruling within five calendar days of this order.

[1] Given Defendant's multiple motions to quash and the fact they are all directed at the FAC, the Court treats the Amended Motion filed on July 10, 2026, as the operative motion.